

Web Circulation



कर्मचारी भविष्य निधि संगठन

(श्रम एवं रोजगार मंत्रालय, भारत सरकार)

EMPLOYEES' PROVIDENT FUND ORGANISATION

(Ministry of Labour & Employment, Govt. of India)

मुख्य कार्यालय / Head Office

भविष्य निधि भवन, 14-भिकाजी कामा प्लेस, नई दिल्ली-110 066.

Bhavishya Nidhi Bhawan, 14, Bhikaji Cama Place, New Delhi - 110 066.

No. LC/Misc/2014/

To

All Addl. Central P.F Commissioners (Zones)/ Head Office,
All Regional P.F. Commissioners,
In-Charge of Regional/Sub-Regional Offices.

Date: 27.05.2014

27 MAY 2014

Subject : Timely action in Contempt Cases.

Sir,

The law of contempt of court has, as its sole purpose, the maintenance of the authority and the dignity of the courts. Supreme Court, the Court of Appeal and the High Courts have power to punish persons for contempt of court in accordance with the law. Jurisdiction for contempt of court exists in a limited form under statute and generally, under common law.

2. A contempt case generally originates from non-compliance of orders of the Hon'ble Courts. Broadly, the following are the reasons for being held in contempt of court :

- a) Being disrespectful to judge.
- b) Not obeying a lawful court order handed down by a judge.
- c) Disruption of legal proceedings by poor behaviour.
- d) Publication of material that can jeopardize someone getting a fair trial.

3. There are two types of contempt - criminal and civil. Criminal contempt occurs when the contemnor actually interferes with the ability of the court to function properly - for example, by yelling at the judge. This is also called direct contempt because it occurs directly in front of the judge. Civil contempt occurs when the contemnor wilfully disobeys a court order. This is also called indirect contempt because it occurs outside the judge's immediate realm and evidence must be presented to the judge to prove the contempt.

4. Instructions have been issued in past to handle the contempt cases properly. Further, in record notes of various review meeting of Zones and Regional/Sub Regional Offices, it was instructed to file reply to all court cases invariably within one month or within the time allowed by the court, whichever is earlier, without fail. On the contrary, it is observed that replies are not filed within the stipulated time. Various High Courts take objection to this and pass strictures. Even sometimes, High Courts declare the defiant person (called the contemnor) in contempt of court.

5. In view of above, in supersession of all instructions issued in this regard, the field offices are directed to adhere to the following instructions in all contempt cases:

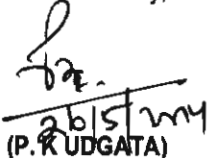
- a) Wherever contempt notices are received and where Employees' Provident Fund Organisation (EPFO)/Central Provident Fund Commissioner (CPFC)/Central Board of Trustees (CBT)/Union of India (UOI) are respondents, RPFs-In-Charge of Regional and Sub Regional Offices shall promptly inform Head Office within 24 hours and that too in e-mail.

- b) The draft reply on behalf of Employees' Provident Fund Organisation (EPFO)/Central Provident Fund Commissioner (CPFC)/Central Board of Trustees (CBT)/Union of India (UI) to the contempt notices shall be forwarded to Head Office within next 48 hours and that too in e-mail detailing therein the Act and Scheme provisions for vetting at Head Office through Additional CPFC (Zones).
 - c) In cases, where contempt of court is ordered requiring compliance by Employees' Provident Fund Organisation (EPFO)/Central Provident Fund Commissioner (CPFC)/Central Board of Trustees (CBT)/Union of India (UI), RPFCs-In-Charge of Regional and Sub Regional Offices shall promptly inform Head Office within 24 hours and that too in e-mail.
 - d) The draft replies to the contempt orders shall be brought to the notice off Head Office within next 48 hours alongwith justification, whether to comply or file appeal against such order and legal opinion through Additional CPFCs(Zones) along with their comments in next 48 hours and that too in e-mail.
 - e) On receipt of the draft reply from field offices, both for contempt notices and for contempt orders, the Legal Cell at Head Office shall bring it to the notice of CPFC and forward a copy of the draft reply to the concerned division for vetting within 2 days of receipt from the receipt of the reply from field offices.
 - f) The concerned divisions at Head Office shall vet the draft reply and forward to Legal Cell within next 2 days of receipt.
 - g) The Legal Cell on receipt of the vetted reply from the concerned division/s shall forward the reply so vetted to the respective field offices for immediate filing of reply in the appropriate court within next 2 days and that too in e-mail.
 - h) Wherever Union of India is a respondent, an application requesting exemption from personal presence on behalf of Secretary (Labour and Employment) shall be immediately filed by the respective field offices.
 - i) The orders of the Hon'ble High Courts shall be dealt with due diligence and due respect. Under no circumstances, the orders of the Courts be flouted as disobedience to the orders of the Court result in contempt of Court and creates embarrassment for the higher authorities.
6. Ministry of Labour and Employment has also prescribed a proforma for sending a monthly report on contempt cases which requires to be submitted by the 2nd of every month to Head Office for compilation and onward transmission to Ministry. The said proforma has already been circulated to field offices. However, a copy of the same is attached herewith for ready reference.
7. Central Provident Fund Commissioner has further directed that any violation of these instructions will be the personal responsibility of the Officer-In-Charge of the contempt petition.

(This issues with the approval of the Central Provident Fund Commissioner.)

Enclosure: As above

Yours faithfully,


(P. R. UDGATA)

Addl. Central P. F. Commissioner (Compliance)

Court Cases Summary

Part. A Details of all the Court Cases including Contempt of Court Cases.

Sl.No.	Particulars	Supreme Court	High Courts	Other Courts	Total
1.	2.	3.	4.	5.	6.
A.1	Total No. of Pending court cases				
A.2	Out of A.1 above, in how many cases, the counter-affidavit is not required to be filed.				
A.3	Balance no. of cases in which counter-affidavit is to be filed (A.1-A.2)				
A.4	Out of A-3, in how many cases, counter-affidavit has been filed				
A.5	Balance No. of cases in which counter-affidavit is yet to be filed (A.3-A.4)				

Part B Details of Contempt of Court Cases Only.

Sl.No.	Particulars	Supreme Court	High Courts	Other Courts	Total
1.	2.	3.	4.	5.	6.
A.1	Total No. of Pending contempt cases				
A.2	Out of A.1 above, in how many cases, the counter-affidavit is not required to be filed.				
A.3	Balance no. of cases in which counter-affidavit is to be filed (A.1-A.2)				
A.4	Out of A-3, in how many cases, counter-affidavit has been filed				
A.5	Balance No. of cases in which counter-affidavit is yet to be filed (A.3-A.4)				